

Court No. - 46

Case :- WRIT - C No. - 19440 of 2020

Petitioner :- Smt.Mannu Devi

Respondent :- State Of U P And 3 Others

Counsel for Petitioner :- Syed Mohammad Abbas Abdy

Counsel for Respondent :- C.S.C.

Hon'ble Naheed Ara Moonis,J.

Hon'ble Vivek Varma,J.

Heard Shri S.M.A. Abdy, learned counsel for the petitioner, learned Standing Counsel representing respondent No. 1 and Shri Baleshwar Chaturvedi, learned counsel for respondents No. 2, 3 and 4.

The instant writ petition has been filed praying for following relief:

"1. Issue a writ, order or direction in the nature of certiorari calling for the record and quashing the electricity bill of domestic electricity connection No. 9467572000 dated 16.1.2020 (Annexure 8 to the writ petition).

2. Issue a writ, order of direction in the nature of mandamus directing and commanding the Respondent No. 3 to decide the representation dated 07.2.2020 of the petitioner by reasoned and speaking order after providing proper opportunity of hearing to the petitioner."

Learned counsel for the petitioner has disputed the accuracy of the bill issued by the respondent-Corporation dated 16.1.2020.

Learned counsel for the respondent-Corporation submits that the petitioner has an alternative remedy under clause 6.5 of the Electricity Supply Code, 2005 and as such the present writ petition may not be entertained.

At this stage, learned counsel for the petitioner has submitted that respondent No. 3 may be directed to decide the representation of the petitioner dated 07.2.2020, Annexure 5 to the writ petition addressed to respondent No. 3.

Learned counsel for the respondents-Corporation has no objection.

Considering the facts and circumstances of the case, the writ petition is disposed of with the direction to respondent No. 3 to decide the representation of the petitioner dated 07.2.2020 within a period of two weeks from the date of production of a copy of this order.

Order Date :- 26.11.2020

Ishrat